Earl Arundel, &c. John Fineux, and Rob. Read, Ch. Justices, J. Young, Master of the Rolls, &c. who were executors of H. 7. *quandam peciam terræ vocat' le Savoy* in the parishes of St. Clements and St. Mary le Strand *ad intentionem quod iidem quoddam hospital' in et super præd' peciam terræ vocat' Savoy erigere, fundare et stabilire possint*, 4 H. 8. The King licensed them *quodd' hospit' de uno magistro et 5 capellanis super prædict' peciam terr' vocat' le Savoy fundare, & hospitale cum sic fundation' fuerit*, should be incorporated by the name *Magister & Capallanorum* **[32 b]** *hospital' H. nuper Regis Angliæ 7 de Savoy;* and yet in truth it was not an hospital in the time of H. 7. but in intention only; and yet the King in his charter called it the hospital of K. H. 7. And it was admitted to be a good name of incorporation by all those who argued the case betwixt (*a*) *Mariat et Pascal* upon the incorporation of the said hospital, Trin. 30 El. in the Exchequer, where the case was adjudged; or in the Exchequer-Chamber where it depended by writ of error: and therefore in (*b*) 44 E. 3. 16. b. Regist. 23. there the corporation was *Prior Hosp' S. Johan' Jerusal. in Angliâ:* and so (*c*) 9 E. 4. 6. *Hospitale S. Lazari de* (*d*) *Jerusal' in Angliâ:* which sufficeth for the name of the corporation, although it be but a fiction, *s.* that either St. John (which was St. John the Evangelist) or Jerusalem was situate in England. So *Magistri milit' Templi Jerusal' in Angliâ;* and in the register, *Prior et frat' Sancti Mariæ de Monte Carmeli in Angliâ:* so I have seen a record, that Catharine the first wife of King H. 8 had a licence to found a chauntry by the name of the chauntry *de Monte Calvarie extrâ Algate Lond.* And it is great reason that an hospital, &c. in expectancy or intendment, or nomination, should be sufficient to support the name of an incorporation when the corporation itself is only *in abstracto*, and rests only in intendment and consideration of the law; for a corporation aggregate of many is invisible, immortal, and rests only in intendment and consideration of the law; and therefore in 39 H. 6. 13. b. 14. a dean and chapter cannot have predecessor nor successor, 21 E. 4. 27. (72.) a & 30 E. 3. 15. They cannot commit treason, nor be (*e*) outlawed, nor excommunicate, for they have no souls, neither can they appear in person, but by attorney 33 H. 8. Br. Fealty. A corporation aggregate of many cannot do fealty, for an invisible body can neither be in person, nor swear, Plow. Com. 213, and *The Lord Berkley's case* 245, it is not subject to imbecilities, death of the natural body, and divers other cases. A thing which is not *in esse* but in apparent expectancy is regarded in law; as a bishop who is elect before he be consecrated; an (*f*) infant in his mother's womb before his birth, &c. 5 E. 2. Bre. 80. 8 E. 2. Voucher 237. 38 E. 3. 30. 41 E. 3. 5. 11 E. 3. Qua Impedit 158. So for the name of a corporation it is sufficient to name a place in England, by the name of Jerusalem, Mount Calvary, Mount Carmel, Bethlehem, &c. *a fortiori*, the name of a spacious and goodly house well and actually built by the name of an hospital is sufficient; for that imports truth and certainty. By which it appears, that in the case at Bar there was a lawful corporation of the governors, &c. created and instituted by the King's charter, and by consequence as well any person in England as Sutton, might give and grant to them before any foundation laid, or to be laid by Sutton (as it was imagined he ought to have done before they were capable, &c.), but that is clearly answered and confuted before; and in truth *hæc recitasse est confutasse.*

[33 a] As to to the 7th objection, it is to be known that in law there are two manner of foundations, one *fundatio incipiens*, the other *fundatio perficiens*, and therefore *quatenus ad capacitatem, et habilitatem*, the incorporation is *metaphoricè* called the foundation, for that is the beginning, as a foundation *quasi fundamentum capacitatis*, preceding the whole, and therefore in (*a*) 21 H. 6. 4. a. a writ was brought against John Arden,

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(*a*) Moor 228. 1 Leon. 159. 1 Anders. 202. Hob. 125. *Postea* 123. b.

(*b*) Fitz. Scire Facias 88. Br. Corporation 10.

(*c*) 9 E. 4. 19. b. Br. Corporation 32.

(*d*) 1 Roll. 512.

(*e*) Br. Corporation 11. Br. Utlagary 72. 39 E. 3. 13. a. Br. Fealty 15. 1 H. P. C. 252. Vin. Ab. Corp. H. 2. 7 Co. 10. b. Co. Lit. 66. b. 4 Co. 11. a.

(*f*) 2 Roll. Rep. 254. Co. Lit. 390 a. 7 Co. 9. a. Car. 87. Hob. 222. 338. 31 E. 1. Brief 873. 11 E. 3. Voucher 13. 9 H. 6. 24. a. 2 Roll. 746.

(*a*) Br. Corporation 30. Br. Misnomer 31. Fitz. Brief 88.

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